



CHAPTER 9.

An Act to amend section twenty of the Mining Industry Act, 1920, and the enactments amending that section. [27th March 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The sum payable into the Miners' Welfare Fund under section twenty of the Mining Industry Act, 1920, as respects the output of any coal mine during the five years commencing with the year nineteen hundred and thirty-nine shall be a sum equal to one penny a ton of the output of the mine, instead of one half-penny a ton as provided in subsection (1) of section two of the Mining Industry (Welfare Fund) Act, 1934.

Increase of
sums pay-
able to
Miners'
Welfare
Fund and
application
thereof.
10 & 11
Geo. 5. c. 50.
24 & 25
Geo. 5, c. 9.

(2) The said sum shall, notwithstanding anything in the said section twenty, be payable, as respects the output of every coal mine during each quarter of the said five years, before the last day of the next following quarter; and accordingly subsection (4) of section two of the Mining Industry (Welfare Fund) Act, 1934 (which provides for the determination of the person by whom the said sum is payable) shall have effect, as respects the output of any coal mine during the said five years, with the substitution for references therein to a calendar year or to a year of references to a quarter.

(3) Of the sums paid into the said fund under the said section twenty as respects the output of coal mines

during the said five years, one half shall be appropriated (in priority to any other payments) for the purposes for which the proceeds of the royalties welfare levy are required to be appropriated, in addition to any sum required to be appropriated for those purposes by subsection (2) of section three of the Mining Industry (Welfare Fund) Act, 1934.

(4) Notwithstanding anything in the proviso to subsection (3) of the said section twenty, no part of the sums appropriated by virtue of this section shall be required to be allocated for the benefit of any particular district.

Incorporation of
Miners' Welfare
Commission.

2.—(1) There shall be constituted a Miners' Welfare Commission consisting of ten persons appointed by the Board of Trade, of whom—

- (a) three shall be appointed after consultation with the Mineworkers' Federation of Great Britain;
- (b) three shall be appointed after consultation with the Mining Association of Great Britain; and
- (c) one shall be appointed after consultation either with the persons liable to pay the royalties welfare levy or with such associations or bodies as appear to the Board to represent those persons.

(2) The said Commission shall be a body corporate with perpetual succession and a common seal and power to hold land without licence in mortmain.

(3) As from such date as the Board of Trade may by order appoint—

- (a) all the powers, duties, property and liabilities of the committee constituted under subsection (3) of section twenty of the Mining Industry Act, 1920, shall be transferred to the said Commission; and
- (b) any reference to the said committee in any enactment or document shall be construed as a reference to the said Commission.

(4) The said Commission—

- (a) may enter into such agreements, acquire such property, appoint such officers, agents and servants, and do such things as may in the opinion of the Commission be necessary or desirable for the exercise or performance of

any of its powers or duties, and may dispose as it thinks fit of any property acquired by it;

(b) may pay out of the Miners' Welfare Fund—

(i) to the members of the Commission or to any of them, such allowances for expenses as the Board of Trade with the approval of the Treasury may determine; and

(ii) to the officers, agents and servants of the Commission such salaries and remuneration and, on the retirement or death of any of them, to them or their personal representatives or to their dependants, such pensions and gratuities as the Commission may determine.

(5) The provisions of the First Schedule to this Act shall have effect as respects the constitution and procedure of the said Commission and otherwise in relation thereto.

(6) As from the date appointed by the Board of Trade under this section, the enactments set out in the Second Schedule to this Act shall be repealed to the extent specified in the third column of that Schedule.

3.—(1) This Act may be cited as the Mining Industry (Welfare Fund) Act, 1939, and this Act and the Mining Industry Acts, 1920 to 1934, may be cited together as the Mining Industry Acts, 1920 to 1939.

Short title,
citation,
interpreta-
tion and
extent.

(2) In this Act—

(a) the expression "Miners' Welfare Fund" means the fund constituted under section twenty of the Mining Industry Act, 1920;

(b) the expressions "output" and "owner" have the same meanings as in the said section twenty;

(c) the expression "quarter" means the period of three months beginning on the first day of January, the first day of April, the first day of July or the first day of October in any year;

(d) the expression "royalties welfare levy" has the same meaning as in Part III of the Mining Industry Act, 1926.

16 & 17
Geo. 5. c. 28.

(3) This Act shall not extend to Northern Ireland.

SCHEDULES.

Section 2.

FIRST SCHEDULE.

INCIDENTAL PROVISIONS AS TO THE MINERS' WELFARE COMMISSION.

1. Every member of the Commission shall hold and vacate office in accordance with the terms of the instrument under which he is appointed; but notwithstanding anything in such an instrument, any member of the Commission may resign his office by a notice under his hand given to the Board of Trade, and a member of the Commission who ceases to hold office shall be eligible for re-appointment to the Commission.

2. At any meeting of the Commission, three, or such greater number as the Commission may determine, shall be a quorum.

3. The Commission shall have power to act notwithstanding a vacancy among the members thereof.

4. If, at any meeting of the Commission the votes are equally divided on any question, the person acting as chairman of the meeting shall have a second or casting vote.

5. All acts done at any meeting of the Commission shall, notwithstanding that it was afterwards discovered that there was some defect in the appointment of a person purporting to be a member of the Commission, be as valid as if that defect had not existed.

6. Minutes shall be kept of the proceedings of the Commission, and any such minutes shall, if signed by a person purporting to have acted as chairman of the meeting to which the minutes relate, or of a meeting at which they were read, be evidence of the proceedings of the first-mentioned meeting, and a meeting to which any such minutes relate shall, unless the contrary is proved, be deemed to have been regularly convened and constituted.

7. Subject to the preceding provisions of this Schedule, the Commission shall have power to regulate its own procedure.

8. The application of the common seal of the Commission to any document shall be attested by at least one member of the Commission and by the person for the time being acting as secretary to the Commission.

9. Any contract or instrument which, if entered into or executed by a person not being a body corporate, would not require to be under seal, may be entered into or executed on behalf of the Commission by any person generally or specially authorised by it for that purpose.

1st SCH.
—cont.

10. Any document purporting to be a document duly executed or issued under the seal of the Commission or on behalf of the Commission shall, until the contrary is proved, be deemed to be a document so executed or issued, as the case may be.

SECOND SCHEDULE.

Section 2.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
10 & 11 Geo. 5. c. 50.	The Mining Industry Act, 1920.	In subsection (3) of section twenty, the words "consisting of five persons" and the words from "of whom one" to "Federation of Great Britain".
15 & 16 Geo. 5. c. 80.	The Mining Industry (Welfare Fund) Act, 1925.	The whole Act.
16 & 17 Geo. 5. c. 28.	The Mining Industry Act, 1926.	Section fifteen.

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FOR

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